

The Claremont City Council held a meeting on Wednesday, October 24, 2018, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Absent:

At-Large Councilor Jeremy Zullo

Also present:

Ryan McNutt, City Manager

AGENDA CHANGES

Mr. O’Hearne objected to the use of the word “motion” on the agenda as Councilors had previously agreed to not have it on the agenda.

Mr. McNutt said that it is official language from HUD for the CDBG.

Mr. Pope said the word motion on the agenda indicates to the public that an item will be voted on. He sees no problem with using the word motion on the agenda. Mayor Lovett will review the minutes.

MAYOR’S NOTES

Rotary Week Proclamation

Mayor Lovett presented a Rotary Week proclamation.

Mayor Lovett’s notes:

- Arrowhead Recreation Club (ARC) has teamed up with Hannaford’s. For the month of October, \$1 from every community bag purchase will go to the ARC.

- ARC deck is being replaced this weekend.
- November 6 is Election Day. Polls open 8 a.m.-7 p.m.
- She went to the Healthy Homes Conference and one topic was the neurological impact from lead poisoning. Also, NH has the highest rate of asthma in the country.

Mr. Koloski said the Claremont Firefighters Association will hold a Turkey Raffle on November 1, 7 p.m.

Since there were Public Works employees in the audience, Mr. O'Hearne talked about an employee appreciation picnic that was held a few months ago for the Public Works employees. He said he wasn't able to attend. He said a letter of appreciation was supposed to be sent to the employees from the Council, but that hasn't happened. He wanted them to know he appreciates them.

Mr. Koloski said he did attend that picnic and he had shared some comments of appreciation on the Council's behalf.

Mr. McNutt said the Claremont Firefighters Association will hold an MDA (Muscular Dystrophy Association) boot drive on Sunday, October 28, at Walmart.

CITIZEN'S FORUM

Walter Stapleton, Ward 3, reminded everyone to vote on Election Day, November 6, and that if needed, filling out an absentee ballot is simple. He talked about respect for private property and political signs, and that no one should remove, deface or tamper with political signs. He said he attended a seminar in Charlestown on how to administer Narcan. It was very informative and all citizens should learn how to do it.

Joe Osgood, Ward 2, said he sent a request to the Council asking for a copy of the contract between the City and the interim Assessor and he would like a copy. He talked about the abatement for Topstone and that the governing body, the Council, should have signed the agreement. He talked about contamination at Topstone and that it should have been researched before the abatement happened. He suggested the Council put together a committee to look into this. He believes the value of the building is ridiculously low.

Mr. Koloski said he has a business in that building and the information Mr. Osgood was saying was not factual. He encouraged the Mayor to contact DES (Department of Environmental Services).

Mr. Koloski questioned the process for people asking the Council for documents. Mayor Lovett said it would be up to the City Manager.

Mr. Osgood said he will file an RSA 91-A request for the document.

Mr. Pope suggested the need for Councilors to go through procedure training for the 91-A process.

Chris Kilmer, AFSCME Staff Representative, requested permission to speak. Council concurred. Mr. Kilmer gave some background. He said the contract for Public Works ended December 2016. The City Manager said the budget is tight; new hires pay 20% for health care. During that same timeframe, a large amount of money was infused into the Police contract. They understand there are issues with Police staffing, but they are trying to show the discrepancy between the units. Impasse has been declared. In 2017, the support staff continued to negotiate, but the City declared impasse, however it didn't file impasse. At that point, there was an insurance change. The union filed against that, but lost in arbitration. The plan increases went into effect in August. 1% wage adjustment went into effect in October. A reopener letter has been sent. Yesterday he received an email from the City Manager indicating that legal counsel has changed. He has received responses for the Clerical, but nothing for Public Works. He said the City Manager's position is that the 2018 budget has been set and he will work on this for the 2019 budget; the unions are feeling disrespected. The wage package that was presented had a direct tie to health. There was concern about a fitness for duty item with no protection for the employee. He's looking for language for the fitness for duty and the change to biweekly pay.

OLD BUSINESS

Wild Goose Boat Launch Update

Donald Clarke, Ward 1 resident and Sullivan County Sportsmen Group member, gave a brief history of the proposed Public Boat Access Area at the Wild Goose Property on Birch Grove Road in Newbury, NH. There was a vote to allow Fish and Game to float a bond for the project; it was passed in the House and turned down by the Senate. The wetland permit from Environmental Services came up for renewal, but the Governor took it off the agenda. The Governor put together a commission for suggestions on how this could be handled. The commission was stacked with people that owned property around the lake. One thing that was suggested was that the people that were opposed to the Wild Goose site would have two years to come up with a suitable alternative site, and if they couldn't then they would go back to the Wild Goose site. The Governor seemed to support that, but there hasn't been much action on it. Mr. Clarke read from an email from an attorney regarding a motion to reconsider was denied due to lack of standing. Prior to that, there was introduced an amendment to the State Constitution.

1. "Are you in favor of amending article 8 of the first part of the constitution to read as follows:

[Art.] 8. [Accountability of Magistrates and Officers; Public's Right to Know.] All power residing originally in, and being derived from, the people, all the magistrates and officers of government are their substitutes and agents, and at all times accountable to them. Government, therefore, should be open, accessible, accountable and responsive. To that end, the public's right of access to governmental proceedings and records shall not be unreasonably restricted. The public also has a right to an orderly, lawful, and accountable government. Therefore, any individual taxpayer eligible to vote in the State, shall have

standing to petition the Superior Court to declare whether the State or political subdivision in which the taxpayer resides has spent, or has approved spending, public funds in violation of a law, ordinance, or constitutional provision. In such a case, the taxpayer shall not have to demonstrate that his or her personal rights were impaired or prejudiced beyond his or her status as a taxpayer. However, this right shall not apply when the challenged governmental action is the subject of a judicial or administrative decision from which there is a right of appeal by statute or otherwise by the parties to that proceeding."

(Passed by the N.H. House 309 Yes 9 No; Passed by State Senate 22 Yes 2 No) CACR
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He said it will be on the November 6 ballot. It is pertinent to this case and he urged everyone to vote yes on the amendment.

Bruce Temple, Sullivan County Representative to the NH Fish and Game Commission, said right now there is no funding for Wild Goose development. Fish and Game Commission took a vote in support of continuing to pursue whatever can be pursued at Wild Goose. CORD (Council on Resource Development) took public comment about Wild Goose in July. On November 8, there will be a meeting where the Fish and Game Commission doesn't anticipate there will be any action, however, CORD could transfer this property to someone else. The Fish and Game Commission wants to hold onto Wild Goose. Mr. Clarke said CORD is tasked with disposing of surplus properties.

Tom Hubert, Sullivan County Sportsmen President, said the tie between the lawsuit and the Constitutional Amendment, is that NH requires that Fish and Game provides access to lakes. He said funding comes from state boat registrations and federal excise tax funds.

Mr. Clarke said the public has a right to have access to that water with no charge to use it. it is clearly spelled out in the law.

Mr. Temple said any public affirmation would be helpful, such as a letter from the Council to the Director of Fish and Game.

A motion was made by Mr. Pope and seconded by Mr. Koloski that the City Council reaffirm its support of the Wild Goose Boat Launch Project and will document that in a letter to NH Fish & Game Department.

Voice vote: motion carried 8-0.

Confirmation of Discontinuance of Old Jarvis Hill Road Between Map Lot 67-3 and 67-4

Nancy Merrill, Planning and Development Director, said the state has no interest in the portion of Old Jarvis Hill Road Between Map Lot 67-3 and 67-4. She said her department has been in communication with Mr. Hunter regarding this.

A motion was made by Mr. Koloski and seconded by Ms. Kier to take Confirmation of Discontinuance of Old Jarvis Hill Road Between Map Lot 67-3 and 67-4 off the table.

Roll call vote:

Lessard - yes

O’Hearne - yes

Stone - yes

Damren - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 8-0.

**A motion was made by Mr. Damren and seconded by Ms. Kier
Form of motion,**

In order to clarify the portion of Old Jarvis Hill Road discontinued by vote of the City Council on March 11, 1981, I move the adoption of the following vote:

Vote:

The vote taken on March 11, 1981, “to discontinue a certain section of Class V Highway known as the Old Jarvis Hill Road,” which did not specify the section of Old Jarvis Hill Road to be discontinued, is hereby ratified and confirmed, and, for elimination of doubt, clarified to have been intended to, and did, discontinue and relinquish all interests in the portion of Old Jarvis Hill Road westerly of Main Street between tax map 67, lot 3, and tax map 67, lot 4, and extending from the Jarvis Hill Road right of way at the northern side of tax map 67, lot 3, to the Jarvis Hill Road right of way at the southern side of tax map 67, lot 3, and tax map 67, lot 4. The City Manager is authorized to record in the Sullivan County Registry of Deeds a notice of discontinuance, to provide a title record of the discontinuance.

Voice vote: motion carried 8-0.

Resolution 2019-9 (as amended) Accept and Expend AmeriGas Funds, Lower Cul de Sac Place – Public Hearing

WHEREAS the City entered into an Agreement, dated March 27, 2015, with AmeriGas Propane, L.P. (“AmeriGas”) regarding the City’s acquisition of the former Synergy Gas Plant (the “Site”) located at Lower Cul-de-Sac Place (Map 120, Lot 10) upon completion of environmental clean-up of the Site, as well as portions of City-owned property located at 14 North Street (Map 108-1) and North Street (Map 107-31); and

WHEREAS, as part of this Agreement, upon completion of the clean-up and delivery of a deed transferring Map 120, Lot 10 to the City, AmeriGas agreed to pay to the City the sum of

\$75,000.00 (seventy-five thousand dollars) to assist the City with expenses related to the Site; and

WHEREAS the Council, by motion dated April 15, 2015, authorized acceptance of Map 120, Lot 10 upon completion of remediation actions pursuant to a final Administrative Settlement Agreement and Order between AmeriGas and the United States Environmental Protection Agency (the “EPA”) and signature of the Agreement between AmeriGas and the City; and

WHEREAS the EPA has issued a Notice of Completion of the work at the Site;

NOW THEREFORE BE IT RESOLVED that pursuant to RSA 34:1-a there is established a Lower Cul-de-Sac Non-Capital Reserve Fund for the purpose of operations and maintenance expenses relating to property located at Lower Cul-de-Sac and identified in the City’s records as Map 120, Lot 10, or for any obligation related to the Property’s environmental condition as of the date of transfer of the property to the City, pursuant to the Settlement Agreement between AmeriGas Propane. L.P, and the City dated March 27, 2015; and

BE IT FURTHER RESOLVED that the City Council hereby accepts the amount of \$75,000.00 from AmeriGas upon its execution of a deed to Map 120, Lot 10 to the City, said funds to be deposited into the expendable reserve fund for the purposes outlined above; and

BE IT FURTHER RESOLVED that the City Manager or his designees will cause all additional monies received by grant, donation, or otherwise, related to the expenses for Map 120, Lot 10 to be deposited into said expendable reserve fund for the purposes outlined above; and

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be necessary to implement this resolution. *(Majority Vote Required)*

Ms. Merrill said the language came from the agreement itself. To expend funds, the City Manager would have to come back to the Council for approval.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

A motion was made by Mr. Pope and seconded by Mr. Damren to adopt Resolution 2019-9 (as amended) Accept and Expend AmeriGas Funds, Lower Cul de Sac Place.

Mr. Pope read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Voice vote: motion carried 8-0.

Ordinance 562 – Amending the Non-Union Employee Classification Plan – First Reading

The purpose of this proposed change is to amend Attachment B to the Non-Union Employee Classification Plan by reclassifying the position of Chief Assessor and adding the Legal Assistant and part-time Farmers' & Artisan Market Coordinator positions.

Enactment of this Ordinance will amend Attachment B to the non-Union Employee Classification Plan, as adopted by Ordinance 535 on May 14, 2014, within the existing Attachment C, Non-Union Employee Pay Schedule and as provided for in the 2019 Fiscal Year Operating Budget. This change was requested by the City Administration.

A motion was made by Mr. Damren and seconded by Ms. Kier to take Ordinance 562 – Amending the Non-Union Employee Classification Plan off the table.

Roll call vote:

Lessard - yes

O'Hearne - no

Stone - no

Damren - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 6-2.

A motion was made by Ms. Kier and seconded by Mr. Damren to adopt Ordinance 562 – Amending the Non-Union Employee Classification Plan on first reading.

Ms. Kier read the Explanation of Proposed Action and the ordinance into the record.

Mr. Pope said right now the City has an Assessor for two days a week and we are looking to hire a Chief Assessor. There have been a lot of questions about Assessing going back to 2014. There is a person willing to come to Claremont as the Chief Assessor, is known to this community, and works with DRA (Department of Revenue Administration). He supports this ordinance. This position can pay for itself with more accuracy and confidence in the position. Mr. McNutt said that person is aware of the Council pursuing a board of assessors and is in favor of that. Mr. Pope said this person will be on board for the revaluation. He will vote yes on this.

Mr. Damren agreed with Mr. Pope that this is a critically important hire. He is in support of this.

Mr. O'Hearne said he is not in support of this. This is not the time to move a position to a department head position and raising the pay when current employees are trying to get a "living wage." He said the position is under the Department of Planning and Development. So, you would have to make Assessing its own department.

Mr. McNutt said the City is not changing the organization of the City. This is to move the position to a grade 12.

Mr. O'Hearne said you cannot have an Assessor as a grade 12 being overseen by a grade 12 (Planning and Development Director).

Mr. Koloski said it would help to have a Chief Assessor.

Ms. Kier said the pay should be based on the position, not the person. She said there are only three cities that pay their assessors more than Claremont and they are larger than Claremont. In general, it is important to have someone who is qualified in this position.

Ms. Lessard asked how qualified a person would this have to be. Mr. McNutt said this person is qualified and is the best candidate for the position.

Mayor Lovett said the Council has to have some reason to qualify this as grade 12. The City doesn't have an Assessing Department in the Code; it falls under Planning. What would prevent the City from increasing the high end of grade 11.

Mr. McNutt said changing the pay scale would require a different ordinance and would require three readings. The City has been searching to fill this position since April. This person is highly qualified and an increase in grade is what it would take to get him here. Mr. McNutt talked to legal counsel about regrading this position and the Council has full authority to make this a grade 12 position.

Mayor Lovett asked if it is cheaper to contract out the position. She doesn't believe the position should be tailored around one individual.

Mr. McNutt said in the future, we can look at changing the payscale. Trying to do that now would move the hiring into the new year and we will likely lose this candidate. He said he and Human Resources had looked into many options including a contracted position and none were cheaper.

Mayor Lovett said this has to have a second reading and get public input. She feels more work needs to be done. She asked what is the real cost of a contract for a year versus hiring someone at grade 12 with benefits. She asked what would need to be done to extend the pay scale for grade 11. Also, she would like to put on the agenda to look at the structure as a whole.

Ms. Kier said she is not in favor of extending the grade 11; that will affect a lot of positions.

There was a discussion about what is paid to the contracted assessor and what other communities pay their assessors.

Mayor Lovett said during a Policy Committee meeting, Joe Lessard, Interim Assessor, said it would be ideal to have three people in the Assessing office. Right now, there is one full-time person and one part-time person. She is in favor of moving this to second reading to hear public input. She'll ask the City Manager for more information and for legal input.

Mr. O'Hearne disagreed. He believes it contradicts the ordinance. He said everyone in grade 12 is a director. During Citizens Forum, Council heard that the City doesn't have funds for pay increases until 2019, but apparently there are funds for one person.

A motion was made by Mr. Damren and seconded by Ms. Kier to move the question.

Roll call vote to move the question:

Lessard - yes

O'Hearne - no

Stone - no

Damren - yes

Kier - yes

Koloski - no

Pope - yes

Lovett - yes

Motion carried 5-3.

Roll call vote on the motion:

Lessard - yes

O'Hearne - no

Stone - no

Damren - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 6-2.

Assessment Abatement Process Update

Mayor Lovett said the Policy Committee will submit a recommendation to establish a Board of Assessors to the Council at the November 14 Council meeting. She said they are all having trouble with the language in RSA 76-19-a and how governing body is defined regarding brownfield sites and assessments. They received legal counsel guidance on that, however, she is still doing more research, because the process should be clear.

NEW BUSINESS

Ordinance 563 School Zones – First Reading

The purpose of this proposed change is to establish an additional school zone for speed limit purposes in the area of the New England Classical Academy. This school zone would extend 200 feet in each direction (total 400 feet) from New England Classical Academy on Old Church Road. The reason for this amendment is that this has been identified as an additional zone needing a reduced speed limit during opening and closing school time periods.

Enactment of this Ordinance will revise Chapter 19, Traffic and Motor Vehicles, Article XI, Section 19-233 by adding a provision to establish one additional school zone to reduce speed limits at the beginning and end of the school day. This change was requested by the City's Traffic Advisory Committee.

A motion was made by Mr. Damren and seconded by Ms. Kier to adopt Ordinance 563 School Zones on first reading.

Mr. Damren read the Explanation of Proposed Action and the ordinance into the record.

Ms. Lessard asked how drivers will be able to know what times this applies to.

Mr. Stone asked if private schools set their own hours.

Voice vote: motion carried 8-0.

Resolution 2019-11 Establishment of Non-Capital Reserve for Fiske Free Library –
Public Hearing

WHEREAS the Fiske Free Library has received a bequest from the Helen G. Cormier Estate and the City would like to establish a Non-Capital Reserve Fund; and

WHEREAS the Council has determined that it is in the best interest of the public to establish a means for the continued improvements, maintenance and repair of the Fiske Free Library, replacement of the fixtures and furnishings at the Fiske Free Library as the need may arise in order to provide appropriate and safe facilities for the public; and

NOW THEREFORE, BE IT RESOLVED that pursuant to RSA 34:1-a there be established a Fiske Free Library Non-Capital Reserve Fund for the purpose of funding current and future improvements, maintenance and repair of the Fiske Free Library, and replacement of fixtures and furnishings at the Fiske Free Library as the need arises; and

BE IT FURTHER RESOLVED by the City Council to raise and appropriate the sum of \$20,000 bequeathed from the Helen G. Cormier Estate, said sum to be taken from unanticipated revenue (with no impact on the tax rate), for the purpose of establishing a Non-Capital Reserve for the Fiske Free Library; and

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be necessary to implement this resolution. *(Majority Vote Required)*

Mike Grace, City Librarian, said that Helen Cormier, who was a long-time Claremont resident and Library patron, passed away earlier this year. In her will, she designated \$20,000 for the Library.

A motion was made by Mr. O’Hearne and seconded by Mr. Pope to adopt Resolution 2019-11 Establishment of Non-Capital Reserve for Fiske Free Library.

Mr. O’Hearne read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Voice vote: motion carried 8-0.

Authorize Easement Agreement for AmeriGas Access to Parcel 120-10

Ms. Merrill said this is the former Synergy site. AmeriGas needs an easement in order to do ground water monitoring.

A motion was made by Mr. Damren and seconded by Ms. Kier to authorize the City Manager or his designees to negotiate, execute and take all such actions as may be required to convey to AmeriGas Propane, L.P., its agents and assigns (AmeriGas), such pedestrian, vehicular, parking and equipment access easements as may be necessary related to AmeriGas responsibilities under Groundwater Management Permit No. GWP-199601023-C-001 (GMP) for 8 groundwater monitoring wells located on Parcel 120-10, Parcel 107-31, and Parcel 108-1, through March 21, 2022. The GMP was issued as part of the hazardous materials remediation of the former Synergy Gas Plant site by AmeriGas and the Environmental Protection Agency (EPA). Said easements to be detailed in an appropriate Easement Agreement to be filed in the Sullivan County Registry of Deeds.

Voice vote: motion carried 8-0.

Ms. Merrill said prior to the closing, the City is filing for the Brownfields Covenant Program, so we will have something from the Attorney General’s Office that will go with the City and to any future owner of that parcel an indemnity, Nonsuit Agreement.

CDBG Feasibility Study Grant Application-Claremont Learning Partnership – Public Hearings

1. The City proposes to submit an application for funding titled Community Development Block Grant (CDBG) Feasibility Study Grant for up to \$12,000 from its application authority for 2018 to the NH Community Development Finance Authority. The funds will be subgranted to the Claremont Learning Partnership to evaluate their capacity to purchase and maintain 169 Main Street in order to preserve their teen transitional housing program, as well as the additional non-profit programs within the building in which a majority of beneficiaries are of low or moderate income.

Note: information packets were available for public viewing.

Mayor Lovett said Community Development Block Grant funds are available to municipalities through the NH Community Development Finance Authority. Up to \$500,000 annually is available on a competitive basis for public facility and housing projects, up to \$500,000 for economic development projects and up to \$350,000 for emergency activities. All projects must directly benefit low and moderate income persons. Up to \$12,000 per study is available for Planning Grants.

This is a proposed application to the Community Development Finance Authority for up to \$12,000 in Planning Grant funds. The funds will be subgranted to the Claremont Learning Partnership to conduct a feasibility study to evaluate purchasing the building at 169 Main Street to support the programming proposed by the Claremont Learning Partnership for teen transitional housing, as well as the additional non-profit tenants within the building in which a majority of beneficiaries are of low or moderate income.

This project conforms with Claremont's Housing and Community Development Plan's Goal of: Plan for complementary services such as affordable day care that allow families to participate in the work force. Encourage other services that will benefit low and moderate income persons, such as expansion of the dental clinic and soup kitchen among others. (Long & Short Term Goal)

Nancy Merrill, Planning and Development Director, introduced Cathy Pellerin and Trinity Dix, Claremont Learning Partnership, and said they are located at 169 Main Street, but they are renting. The property is up for sale. The purpose of the planning grant is to perform a feasibility study to determine if they can, or should, buy that property.

Ms. Dix said they are working to provide six bedrooms for teens from 16-22 years old and their children. They are working to bring the building up to code. There are other non-profits in the building that clients may be able to take advantage of, offering a one-stop-shop.

- 1) Motion to Approve Application for Grant – Public Hearing

A motion was made by Ms. Kier and seconded by Mr. Koloski to approve the submission of a Planning Community Development Block grant application for a feasibility study of

property located at 169 Main Street to the New Hampshire Community Development Finance Authority in an amount not to exceed \$12,000 (consistent with public hearing notice) and to further authorize the City Manager to sign and execute all documents related to the CDBG application.

Mayor Lovett opened the public hearing and asked if anyone from the public wished to speak. No one spoke. She closed it.

Voice vote: motion carried 8-0.

2) Review and Motion to Re-adopt City's Housing and Community Development Plan – Public Hearing

Mayor Lovett said this is a discussion for the proposed updated Housing and Community Development Plan that outlines short and long term goals for the City.

Ms. Merrill said there have been no changes on the residential anti-displacement plan in the packet. The Housing and Community Development Plan has some changes:

- Economic Development Goal 4 merged two prior goals and added the last sentence from the Master Plan.
- Goals 6, 7, and 8 are all new and come from the Master Plan (entrepreneurship, arts and tourism)
- Goal 12 is new and relates to the City's continued support of upgrades to existing buildings, adaptive reuse and brownfield remediation
- Under Community Development, Goal 1 added language about the Capital Facilities chapter of the Master Plan and the CIP (Capital Improvements Plan)
- Goal 3 specific infrastructure on the City Center is new
- Goal 6 transportation improvements is new
- Under Housing, Goal 5 added a second sentence that comes from the Master Plan that relates to strengthening neighborhoods, community engagement and housing solutions

A motion was made by Mr. Koloski and seconded by Mr. Damren that the Claremont City Council moves to review, amend and reaffirm the City's Housing and Community Development Plan and approve amendments to Goal #1, Economic Development, Goal #2, Community Development, and Goal #3, Housing.

Mayor Lovett opened the public hearing and asked if anyone from the public wished to speak. No one spoke. She closed it.

Voice vote: motion carried 8-0.

3) Review and Motion to Adopt City's Residential Anti-Displacement and Relocation Assistance Plan – Public Hearing

Mayor Lovett said although this project does not involve any displacement or relocation of persons (or businesses), if the City were to undertake a CDBG project which involved displacement or relocation they would follow this plan. The plan outlines the measures they would take to find comparable, suitable housing for persons (or businesses) displaced or relocated.

Ms. Merrill said there have been no changes in the City's Residential Anti-Displacement and Relocation Assistance Plan.

A motion was made by Mr. Koloski and seconded by Ms. Kier that the Claremont City Council moves to review and reaffirm City's Residential Anti-Displacement Plan.

Mayor Lovett opened the public hearing and asked if anyone from the public wished to speak. No one spoke. She closed it.

Voice vote: motion carried 8-0.

Discussion of Renewable Energy Ordinance

Mr. Pope said the first meeting of the Energy Advisory Committee was on Tuesday, but he didn't attend. The renewable energy ordinance will require more review from this committee.

Mr. Pope read from the October 17, 2018, memo from the Claremont Energy Advisory Committee that the Committee supports 100% tax exemptions for the renewable energy systems listed in the RSA.

Ms. Merrill said the information given to the Council is just a draft for Council's review. This has not gone to legal review. She reviewed other communities and Newport's exemption is specific to the original owner. In several, they talked about primary residence, which is what she put in here. One was very specific and Ms. Merrill urged Council to also be specific that commercial generating facilities are not eligible as they truly are a business.

Joe Lessard, Interim Assessor, said that Ms. Merrill discussed this with him and he gave his input.

Mayor Lovett said the Council will direct the City Manager to send this for legal review. She would like to fast track this and have it on the next agenda.

NH Constitutional Amendments Discussion

2018 CONSTITUTIONAL AMENDMENT QUESTIONS Constitutional Amendments Proposed by the 2018 General Court

1. "Are you in favor of amending article 8 of the first part of the constitution to read as follows:

[Art.] 8. [Accountability of Magistrates and Officers; Public's Right to Know.] All power residing originally in, and being derived from, the people, all the magistrates and officers of government are their substitutes and agents, and at all times accountable to them. Government, therefore, should be open, accessible, accountable and responsive. To that end, the public's right of access to governmental proceedings and records shall not be unreasonably restricted. The public also has a right to an orderly, lawful, and accountable government. Therefore, any individual taxpayer eligible to vote in the State, shall have standing to petition the Superior Court to declare whether the State or political subdivision in which the taxpayer resides has spent, or has approved spending, public funds in violation of a law, ordinance, or constitutional provision. In such a case, the taxpayer shall not have to demonstrate that his or her personal rights were impaired or prejudiced beyond his or her status as a taxpayer. However, this right shall not apply when the challenged governmental action is the subject of a judicial or administrative decision from which there is a right of appeal by statute or otherwise by the parties to that proceeding." (Passed by the N.H. House 309 Yes 9 No; Passed by State Senate 22 Yes 2 No) CACR 15

2. "Are you in favor of amending the first part of the constitution by inserting after article 2-a a new article to read as follows:

[Art.] 2-b. [Right to Privacy.] An individual's right to live free from governmental intrusion in private or personal information is natural, essential, and inherent."

(Passed by the N.H. House 235 Yes 96 No; Passed by State Senate 15 Yes 9 No) CACR 16

These State Constitutional Amendment Questions will be on the November 6, 2018, ballot.

Mayor Lovett said Mr. Clarke went over #2 earlier in the meeting. She said #1 is adding language to the Constitution. She said the second question also adds language and references natural rights. She read the articles as they are written in addition to the proposed amendments to give context.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Pope said it is important for the Council to get procedures training from NHMA (i.e. discuss roles, motions, 91-A requests, define governing body, communications, general procedures, putting the word "motion" in the agenda, and why have two readings versus three readings of an ordinance).

Mayor Lovett said it would also be a good time to talk about consent calendars on the agendas. She said when she calls NHMA for clarification on things, they will say they don't want to interfere with the municipality's legal counsel.

Ms. Kier suggested Councilors attend NHMA's Annual Conference.

Mr. Koloski asked that background be in the Council packet for the elderly tax exemption and the veterans tax credit.

Mr. Damren said because negotiations are starting fresh, it would be appropriate for the Council to determine who will be part of the Public Works and Clerical Unions negotiating teams.

A motion was made by Mayor Lovett and seconded by Mr. Damren to appoint Ms. Kier to observe the Clerical Union negotiations and Mr. O'Hearne to observe the Public Works Union negotiations.

Voice vote: motion carried 6-0, with Mr. O'Hearne and Ms. Kier abstaining.

Mayor Lovett reminded the Councilors that they are to observe, not be part of the negotiations. Ms. Kier and Mr. O'Hearne will be responsible for making updates to the Council.

Mr. O'Hearne asked about the Police Prosecutor contract, under section 6.3, where it discussed failure to appropriate. He said he was not aware the Council was bound by this contract until after the fact. Mr. McNutt said that is the standard non-appropriation clause.

Mayor Lovett said in the future if a document has anything to do with the Council, Council should know about it beforehand.

Mayor Lovett said regarding NHMA training, that she can send them information prior to them coming here (i.e. procedures, Council Rules). She has talked to them about the Charter and was told there is some room to improve.

There was a discussion of the contract for Pat MacQueen, MRI. In addition to talking with Councilors, Mayor Lovett will add that Mr. MacQueen will talk with former department heads.

Mr. O'Hearne believes all nine Councilors should sign the agreement. Mayor Lovett said the Council usually appoints someone to act as representative, usually her.

Once Mr. MacQueen is finished with his work, he will report his findings to the Council. Regarding paying for this, Council directed the City Manager to find the money in the budget.

Mr. Koloski agreed with Mayor Lovett signing this agreement, but asked that signing future agreements be discussed by the Council.

Mr. Stone asked for a weekly synopsis.

Mr. O'Hearne reiterated all nine Councilors should sign the agreement.

A motion was made by Mr. Damren and seconded by Ms. Kier to make Mayor Lovett the primary contact point for the MRI agreement regarding Pat MacQueen and the services he will recommend to the Council.

Voice vote: motion carried 7-1, with Mr. O'Hearne voting no.

Because some members of the Council will be at the NHMA (NH Municipal Association) Annual Conference, Councilors agreed to change the November 14 meeting to Tuesday, November 13, at 6:30 p.m.

Ms. Kier reminded all that there would be a joint meeting of the Council and School Board on November 15.

There was a consensus of the Council to not meet on November 28th.

Mayor Lovett said after the Policy Committee is finished with its work on the Board of Assessors, they will move on to the lead policy. She asked Mr. McNutt to have an update of what the City is doing operationally to address lead in the community.

Mayor Lovett hopes to take care of the public concerns regarding the Topstone assessment and abatement with processes that will come before the Council on November 13th.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:39 p.m., a motion was made by Mr. O’Hearne and seconded by Mr. Damren to adjourn.

Voice vote: motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council